

PRESCOTT VANE LLP
Conflicts Department —Clearance Report
PRIVILEGED AND CONFIDENTIAL —INTERNAL

Report Date: March 30, 2011

Requested By: Arthur Pellow, Partner, Litigation (Pittsburgh)

Request Date: March 25, 2011

Prepared By: Dora Kraljic, Conflicts Counsel

New Matter No.: 2011-0284

Client: Torvane Industrial Group, Inc. (Erie, Pennsylvania)

Matter Name: Kelling Station Unit 2 expansion project —claims

1. Scope of Search

Searched parties, including known affiliates, former names and d/b/a records, against the firm's client and adverse-party database (1996–present) and lateral attorney disclosure records:

Party	Capacity	Result
Torvane Industrial Group, Inc.	Prospective client	No conflict —prior engagement (2006 employment advice, Matter 2006-0912, closed) for the same client; no adversity
Ridgeline Constructors, Inc.	Prospective adverse party	No current-client conflict — see §2
Fairmount Surety & Indemnity Co.	Surety for Ridgeline	Not a client; appears as adverse surety in two closed matters (2004, 2009)
Kelling Township, Pennsylvania	Site host (non-adverse)	Not a client
Brandt Thermal Systems, Inc.	Project participant; identified by requesting attorney as a potential adverse party (equipment warranty)	Not a client, never a client; no record of adversity
Croyden Mills (Torvane facility)	Client facility reference	Not a separate entity of record

2. Items Noted

2.1 In 2007 the firm closed a collections matter (2005-1141) for Keystone Fabricators, Inc. against a subcontractor later acquired by Ridgeline Constructors. The matter is closed, unrelated in subject, and involved no confidential information bearing on the present dispute. No consent required.

2.2 Brandt Thermal Systems, Inc. is included at the requesting attorney's direction as a potential adverse party in connection with equipment warranty

claims arising from the same project. The search is clear. Should the firm be asked to act adversely to Brandt, no re-check will be required within twelve months of this report.

3. Determination

CLEARED. The engagement may be accepted. New business intake has assigned Matter No. **2011-0284**. The engagement letter should issue before substantive work begins, per firm policy 4.2.

Dora Kraljic
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Prescott Vane LLP